ONE-OFF SHIURIM

Hint or Memory Aid? Ramhal and Maharal on the Asmakhta

Derech Hashem, Maamar Halkarim

Sefer: Maamar Halkarim by Rabbi Moshe Hayim Luzzatto (the Ramhal), printed at the end of Derech Hashem **Section:** Maamar Halkarim, essay 10: the Oral Law, asmakhta and disputes (continued) **Shiur:** Part of Dayan Daniel Kada's Derech Hashem series at Tiferet Eyal, Monday 25 July 2022

These notes are based on an automatic transcript of the recording.

A short continuation

This short recording continues the class of the same evening, after the Rabbi had stepped out to take a phone call. The class had been discussing the asmakhta: a verse used to "support" a law that is already known. It had reached the dispute between the Ramhal and the Maharal of Prague about the second, weaker kind of asmakhta, used for laws the Sages instituted themselves.

Mnemonic or intended hint?

The Rabbi restated the two positions. For the Maharal, when the Sages attach a purely rabbinic law, such as netilat yadayim, to a verse, they are using it as a mnemonic, a way to help you remember the law. It was never the meaning or intention of God. The Ramhal says no: even this was part of God's intention when He worded the Torah, though the hint is distant.

When the tradition was forgotten

A participant raised a further point. What if a tradition, like the etrog, had been forgotten? Then the Sages would have to go back to the written text and use the 13 principles, the "code book", because one cannot just make things up; you need something to hang your hat on. And with several principles available, there would be competing answers that needed to be resolved.

The Rabbi agreed with the process but made a distinction. If a law is derived through the 13 principles, that is not an asmakhta. That is interpretation. The asmakhta is for laws that are known independently.

Three ways the Sages use verses

He then summarised what had emerged, three different ways of relating a law to a verse:

1. **The 13 principles.** Rules for interpreting the Torah, like the rules for interpreting legislation, used when the answer is not known.
2. **The asmakhta for transmitted laws.** The law is clearly part of the tradition, such as the etrog, and the Sages find a hint for it in the verse.
3. **The asmakhta for rabbinic laws.** Laws the Sages made themselves, such as netilat yadayim or Hanukkah, for which they also find a source. For the Ramhal, this too was God's intention; for the Maharal, it is just a mnemonic. "You look at this verse, you remember the law. But not that that was ever Hashem's intention."

Disputes and the Sanhedrin

The Ramhal continues: there are many other details of law that were not received by tradition, and the Sages worked them out through reasoning or through the principles of interpretation. On these there were disputes. Once a dispute is decided, we are obliged to follow the ruling, and the fact that there was a dispute does not weaken it.

This, said the Rabbi, is just what the group had described. Use a gezerah shavah and you reach one answer; use kal vahomer and you reach another. It is then up to the Sanhedrin of the time to resolve it, and whatever it decides must be followed. That is the law of the zaken mamre, the rebellious elder: once the Sanhedrin has ruled, you must accept it, however great a scholar you are.

He recalled the tragic story of Rabbi Eliezer ben Hyrcanus and the oven. He would not accept the majority, and the Sages excommunicated him.

Next: the status of rabbinic law

The final paragraph of the whole work, he said, would need proper time on Thursday, to be followed by a recap and a small siyyum. It raises a fundamental question. Having discussed the purpose of the Oral Law, how it works with the written Torah in three ways, the 13 principles and the two kinds of asmakhta, we must ask: what about laws that are purely rabbinic, with no asmakhta at all, such as mukseh? What is their force? Are they the same as biblical laws?

There are clear differences in practice: when in doubt about a biblical law we are strict, and about a rabbinic law lenient. But the Ramhal, said the Rabbi, holds "a very interesting position": rabbinic and biblical laws have exactly the same force. The only difference God made is that in doubt one is strict with the biblical and lenient with the rabbinic.

A participant objected that the punishments are not the same. The Rabbi agreed, but said that is true even among biblical laws. Breaking Shabbat carries stoning and eating pork carries lashes, yet no one would say "I have to keep the pork law less". At worst, the Sages could impose lashes of rebelliousness for ignoring a rabbinic law. But a lighter punishment does not mean a lesser obligation to listen. Others in the group called rabbinic laws "fences", and the Rabbi agreed. The full discussion was left for Thursday, when the book would be concluded.

Summary

- This short recording continues the class of the same evening after a brief break.

- For the Maharal, a verse attached to a rabbinic law is a mnemonic; for the Ramhal, it is a hint God intended.
- Laws derived through the 13 principles are interpretation, not asmakhta.
- Where reasoning leads to disputes, the Sanhedrin decides, and its ruling binds even the greatest scholar.
- The Ramhal holds that rabbinic laws carry the same force as biblical ones, differing only in how doubts are treated.

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